

Court No. - 39

Case :- WRIT - C No. - 27425 of 2020

Petitioner :- Ram Asre

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Balram Jee Verma

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, learned Standing Counsel on behalf of respondent no. 1 and Shri Narendra Kumar Tiwari, learned counsel appearing on behalf of respondents no.2 to 4.

The instant petition has been filed seeking following reliefs :

"(i) Issue a writ order direction in the nature of certiorari quashing the impugned demand notice dated 18.07.2020 issued by the respondent no. 3 (contained as annexure no. 7 to this writ petition);

(ii) Issue a writ order direction in the nature of mandamus commanding and directing the respondents to consider the case of the petitioner for correction of electricity bill by calculating mere reading under KWH in place of KVAH and further to grant benefit of exemption to pay surcharge on the electricity dues within certain stipulated period of time as fixed by this Hon'ble Court, so that the petitioner could be able to deposit the electricity dues in installments."

Learned counsel appearing on behalf of Power Corporation submits that the petitioner has not paid even a single penny despite the earlier demand notice which was made on 04.11.2019. Since he has committed default in making payment pursuant to the aforesaid demand notice, a fresh demand notice dated 18.07.2020 has been issued against him which is impugned in this petition. He further submits that since the petitioner is disputing the amount, the petitioner may represent his grievance under Clause 6.15 of the Electricity Supply Code, 2005 before respondent no. 3, who shall consider the grievance of the petitioner and pass an appropriate order.

Considering the aforesaid facts and circumstances of the case, this writ petition is **disposed of** with a direction to the petitioner to move a fresh representation, under Clause 6.15 of the Electricity Supply Code, 2005, ventilating all his grievances before respondent no. 3 (Executive Engineer/Prescribed Authority, Electricity Distribution Division, Purvanchal Vidyut Vitran Nigam Ltd Dhanghata, Sant Kabir Nagar) within two

weeks from today along with a copy of this order, who shall consider and decide the same strictly in accordance with law by means of a reasoned and speaking order, after giving due opportunity of hearing to the petitioner within a period of four weeks thereafter.

Order Date :- 21.1.2021

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